

LRS | Nondelegation & Appointments

Reading brief for September 23 and September 28

Casebook pp. 76-106 and 135-174 | Prepared for Daniel Kind

This brief follows the assigned casebook excerpts, including the notes and institutional readings. It separates holdings from concurrences, dissents, and scholarly arguments. The central problem across both assignments is how administrative power acquires lawful authority and remains accountable: Congress must define the power an agency receives, while the Constitution regulates who may exercise that power and how those officials are appointed and supervised.

The September 23 assignment continues the nondelegation discussion with *Whitman* and *Gundy*, then examines competing historical and democratic accounts of delegation. The September 28 assignment opens the executive-supervision chapter, explains the organization of administration, and develops the Appointments Clause through *Buckley*, the officer/employee cases, and *Arthrex*. *Morrison* and *Edmond* appear as substantial note cases.

Source and scope

The source is the September casebook scan identified in D3m0sthene5/DKLA as added-sources/lrs-september (1).pdf. A matching-size copy of that scan was available among your files and was read directly. All references marked CB refer to printed casebook pages, not PDF viewer numbers. Printed page 76 is duplicated in the scan; it is covered once. The assigned ranges contain 71 distinct printed pages.

This is a reading brief, not a survey of every subsequent development in administrative law. Statements about the doctrine, agency organization, and pending legislative proposals are presented in the context of the assigned text. Additional analysis and practice hypotheticals are labeled as such. Removal doctrine begins on CB 175 and falls outside this assignment.

Correction to the assigned text

CB 135 says presidential appointments require the advice and consent of two-thirds of the Senate. The printed scan actually contains this error; it is not an OCR artifact. Article II, Section 2, Clause 2 imposes the two-thirds requirement on treaties. Its appointments provision requires Senate advice and consent without that supermajority threshold. The clause is accurately reproduced in the casebook on CB 147. Use the constitutional text, not the statement on CB 135.

How to use this brief

Read the doctrinal overview first, then the case briefs and notes in assignment order. The closing comparison and practice pages test the distinctions most likely to matter in discussion: statutory interpretation versus agency self-restraint; employee versus officer; principal versus inferior officer; authority to appoint versus authority to supervise; and finding a constitutional violation versus selecting its remedy.

Doctrinal overview

The two assignments in one framework

Nondelegation: the source and limits of power

Article I vests legislative powers in Congress. Under the intelligible-principle approach applied in the assigned cases, Congress can give agencies substantial implementation discretion if the statute supplies a guiding principle. Identify the delegated task and the statutory limits before judging the delegation. *Whitman* sustains a health-based air-quality mandate; the *Gundy* plurality reads SORNA to require registration of pre-Act offenders as soon as feasible. In both, statutory interpretation determines the constitutional problem. [CB 76-85.]

The permissible scope of discretion depends partly on the breadth of the power conferred. A narrow administrative task can tolerate less detailed guidance than a sweeping regulatory mandate. An agency cannot repair an unconstitutional delegation by voluntarily choosing a limit Congress omitted: choosing the missing policy would itself exercise the disputed power. [CB 77-79.]

Appointments: the identity and supervision of the decisionmaker

Begin by deciding whether a position is an office. *Buckley*'s inquiry asks whether the appointee exercises significant authority under federal law. *Freytag* and *Lucia* apply that inquiry to adjudicators with legally established, continuing responsibilities and substantial discretion. The officer/employee inquiry is distinct from the principal/inferior inquiry. [CB 147-154.]

Principal officers require presidential appointment with Senate advice and consent. That is also the default for inferior officers, but Congress may by law vest their appointment in the President alone, courts of law, or heads of departments. Congress cannot appoint executive officers itself or add House confirmation as another constitutional route. [CB 147-152.]

For inferior status, *Morrison* emphasizes removal by a superior plus limited duties, jurisdiction, and tenure. *Edmond* emphasizes direction and supervision by officers appointed through presidential nomination and Senate confirmation. *Arthrex* applies that supervisory principle to final executive adjudication: the APJs' decisions in inter partes review could not remain insulated from principal-officer review under the challenged arrangement. [CB 156-174.]

The common concern: accountability, with competing meanings

A delegation critic asks whether Congress has avoided responsibility for a difficult policy choice. A defender asks whether administrative discretion enables expertise and responsiveness to presidential elections. In *Arthrex*, the majority associates accountability with a visible chain of presidential control; Breyer emphasizes Congress's institutional choices, technical expertise, and adjudicative independence. These arguments share a vocabulary but disagree about the mechanism that makes authority legitimate. [CB 87, 100-105, 158-162, 167-170.]

Whitman v. American Trucking Associations

531 U.S. 457 (2001) | Main excerpt: CB 76-80

Material facts and statutory setting

The Clean Air Act directs the EPA Administrator to set national ambient air quality standards, or NAAQS, at levels requisite to protect public health with an adequate margin of safety. The dispute concerns the criteria governing that standard-setting authority. Regulated interests argued that the Administrator could consider implementation costs and that the statute failed to supply a sufficiently determinate standard for choosing a permissible pollution level. The assigned excerpt focuses on these statutory and nondelegation questions. [CB 76-77.]

Procedural posture

The D.C. Circuit maintained its position that implementation costs could not enter the NAAQS calculation. On delegation, however, it treated the EPA's interpretation as constitutionally deficient because the agency had not articulated determinate criteria for deciding how much pollution was too much. It remanded for a limiting agency interpretation. The Supreme Court agreed on the exclusion of costs and rejected that nondelegation analysis. [CB 76-79.]

Issues and holdings

First, may EPA weigh implementation costs when setting primary NAAQS under Section 109(b)(1)? No. The statutory language, structure, and context exclude those costs from this particular calculation. Second, does the health-protection mandate unconstitutionally delegate legislative power? No. The statute provides an intelligible principle. Third, could EPA cure an unlawful delegation by voluntarily limiting itself? No. The constitutional adequacy of Congress's delegation is a judicial question about the statute. [CB 76-79.]

Reasoning: interpretation comes first

Scalia begins with what Congress authorized because the constitutional inquiry depends on the scope of that authorization. EPA must use the health-effects criteria to determine a tolerable pollutant concentration, allow an adequate margin of safety, and establish the standard. Congress did not include compliance costs in that calculation. The Court refuses to infer such an important qualification from vague or ancillary language in the statute: the basic design of a regulatory system requires clear textual support for a proposed fundamental change. [CB 76-77.]

Constitutional avoidance cannot create a meaning the text cannot reasonably bear. Even serious constitutional doubt would not authorize judicial insertion of a cost-benefit criterion into a provision that unambiguously excludes it. This is a constraint on interpretation, not a conclusion that costs are irrelevant everywhere in environmental regulation. The holding concerns the NAAQS-setting provision. [CB 77.]

Disposition and opinion

Scalia writes the Court's opinion in the excerpt. The Court affirms the cost-exclusion ruling and reverses the delegation-based remand. Stevens, joined by Souter, agrees with the result while disputing the Court's characterization of the delegated power. The excerpt does not reproduce every issue or separate opinion from the full decision. [CB 79-80.]

Whitman: rationale and discussion

Congressional limits versus agency self-restraint

Why the statutory principle is sufficient

The mandate is bounded by a defined subject, scientific criteria, national uniformity, a health-protection objective, and a requirement of sufficiency without unnecessary excess. The agency must make judgments about risk and safety margins, but the Court does not demand a numerical formula supplied by Congress. The principle falls within a long line of sustained delegations, including public-interest regulation and standards keyed to fair and equitable prices. [CB 78-79.]

The majority distinguishes the exceptional 1935 invalidations. Panama Refining lacked adequate guidance; Schechter authorized extraordinarily broad economic regulation under a fair-competition standard. Whitman recognizes that more extensive delegated authority demands more substantial guidance, yet rejects the idea that even a large regulatory program must contain a determinate answer to every boundary question. [CB 78-79.]

Why an agency cannot cure the defect

If Congress failed to choose the policy that constitutionally had to guide administration, an agency's choice of a self-imposed limit cannot supply Congress's missing decision. The actor receiving the power would be defining the scope of its own entitlement to exercise it. That remains true even if its chosen limit is sensible and judicially manageable. Congress's incorporation of existing standards into a statute is different because the legislative act adopts those limits. [CB 77-78.]

Stevens and Souter: a different account of legislative power

Stevens argues that making generally applicable rules is legislative in character regardless of whether Congress or EPA performs it. He would acknowledge a delegation of legislative authority and hold it constitutionally permissible because Congress sufficiently constrained it. The majority instead describes permissible administrative discretion as not constituting a transfer of forbidden legislative power. The disagreement concerns constitutional classification and candor, not whether this delegation survives. [CB 79-80.]

Discussion questions with answers

Why does excluding costs help define the delegation? It makes Congress's objective more specific: health protection supplies the relevant criterion, rather than leaving EPA to balance health against economic burdens without legislative priorities. That does not mean a statute permitting cost considerations would necessarily fail; its complete instructions would need separate analysis.

Could EPA secretly consider costs and thereby make the statute constitutional? The Court says proof of such conduct would establish a statutory violation warranting review of the standards, not a reason to rewrite the statute. The statutory command and the agency's compliance are different questions. [CB 77 n.1.]

What is the strongest criticism of the majority's rule? A phrase like adequate safety still leaves consequential policy judgments about acceptable risk. The answer under the assigned precedent is that the Constitution permits substantial administrative discretion once Congress specifies a sufficiently intelligible objective and bounds the field. Whether that protection is demanding enough is the dispute developed in Gundy and the notes.

Gundy v. United States

588 U.S. 128 (2019) | Main excerpt: CB 80-91

Facts and statutory setting

SORNA sought a comprehensive national sex-offender registration system and backed registration duties with criminal penalties. The disputed provision, 34 U.S.C. Section 20913(d), authorized the Attorney General to specify the applicability of the requirements to offenders convicted before enactment and to prescribe registration rules for offenders unable to meet the ordinary initial-registration deadlines. Those deadlines posed an obvious transitional problem for people whose sentencing or release had already occurred. [CB 80-81.]

Herman Gundy pleaded guilty to a Maryland sex offense before SORNA's enactment. After his release in 2012, he lived in New York without registering and was convicted of failing to register. By then, the Attorney General had issued rules extending SORNA to pre-Act offenders. Gundy argued that Congress had unconstitutionally delegated the choice whether those offenders would be covered. The district court and Second Circuit rejected the challenge. The Supreme Court affirmed. [CB 81-82.]

Issue and result

Does Section 20913(d) transfer legislative power to the Attorney General without an adequate limiting principle? The judgment rejects the challenge. Kagan's four-Justice plurality reasons that Congress required coverage of pre-Act offenders as soon as feasible and delegated only management of transitional implementation problems. Alito supplies the fifth vote on the basis of existing doctrine, without joining the plurality's opinion. [CB 82-85.]

Kagan's reasoning

The inquiry begins with statutory construction. Gundy's broad reading isolates the first part of the delegation provision from its title, its second clause, the surrounding scheme, and the Act's purpose. Read together, those features show a congressional commitment to comprehensive registration, including pre-Act offenders. The Attorney General determines how to implement that commitment when immediate compliance is impracticable. [CB 82-84.]

Reynolds had held that registration obligations for pre-Act offenders depended on action by the Attorney General. The plurality reads that decision as also recognizing why Congress used this arrangement: immediate registration of the pre-Act population might not have been feasible. Reynolds therefore supports a temporary administrative role rather than indefinite power to exempt the group. [CB 82-83.]

Once construed in this way, the statute easily satisfies the intelligible-principle test. Congress identifies both the policy and the implementation constraint: achieve coverage as soon as feasible. The delegation is more confined than many previously sustained statutes. The plurality also stresses that practical government requires broad general directions in technically complex and changing circumstances. [CB 84-85.]

Opinion alignment

Kagan is joined by Ginsburg, Breyer, and Sotomayor. Alito concurs in the judgment. Gorsuch dissents, joined by Roberts and Thomas. Kavanaugh does not participate. The judgment is 5-3; describing Kagan's reasoning as a five-Justice majority would be inaccurate. [CB 80, 85-86.]

Gundy: the separate opinions

Statutory meaning, criminal law, and the proposed stricter test

Alito's narrow concurrence

Alito would support reconsideration of the Court's longstanding approach if a majority were prepared to undertake it. Without that majority, he considers it unjustified to isolate this provision for different treatment when decades of decisions upheld broad delegations. He finds a discernible standard adequate under that existing approach and votes to affirm. His concurrence expresses willingness to change doctrine, but it does not itself adopt Gorsuch's proposed test. [CB 85.]

Gorsuch's account of the statute

Gorsuch reads the provision as granting the nation's chief prosecutor broad authority to determine the registration duties of roughly half a million pre-Act offenders. The plurality's feasibility limit, on this view, reconstructs a choice Congress did not make. The stakes are especially severe because the official writing the obligations is also charged with enforcing a criminal regime. Disfavored subjects do not diminish the structural protection: a rule allowing this concentration of authority can extend to other groups. [CB 85-87, 90-91.]

Three permissible forms of assistance

Gorsuch identifies three categories of permissible assignments. Congress may settle the governing policy and allow another branch to fill in details. It may establish a rule whose operation depends on executive fact-finding. And it may confer discretion in an area in which another branch already possesses independent constitutional authority, such as certain foreign-affairs or judicial-practice functions. These categories explain legitimate assistance without permitting wholesale transfer of the legislative choice. [CB 88.]

He argues SORNA fits none of them. The treatment of the pre-Act population is itself an important policy choice; the statute does not identify a fact triggering a rule already supplied by Congress; and defining domestic criminal obligations does not fall within independent presidential lawmaking authority. [CB 90-91.]

Why the institutional structure matters

For Gorsuch, bicameralism and presentment force lawmaking through a process that promotes consensus, notice, stability, minority protection, and identifiable responsibility. Delegation can allow legislators to claim credit for addressing a problem while blaming executive implementation. Courts must enforce the allocation because Congress may have incentives to surrender its own responsibilities. The separation of powers protects the people, not merely the prerogatives of competing institutions. [CB 87.]

What the disagreement actually turns on

The opinions disagree both about SORNA's meaning and about the appropriate constitutional standard. Even before reaching the latter, the same wording appears to Kagan as a bounded implementation assignment and to Gorsuch as an unresolved legislative choice. A strong answer should explain both disputes. Saying only that one side favors a larger administrative state misses the doctrinal work done by interpretation, historical categories, and criminal-law concerns.

Nondelegation notes: workable tests and history

CB 92-99

Facts and details are not self-defining categories

The notes ask whether Gorsuch's proposed alternatives solve the intelligible-principle test's indeterminacy. Deciding whether workers count as statutory employees requires facts about their work, but also a legal and policy judgment about which relationships the statute protects. The newsboys in *Hearst* and the example of platform drivers show how a seemingly particular classification can determine the reach of a nationwide regulatory program. Calling a decision a fact or a detail does not settle how much policymaking it contains. [CB 92.]

The resulting question is operational: what degree of statutory guidance makes administrative decisions legally reviewable and politically accountable? If a strict fact/detail distinction excludes mixed judgments, it threatens a vast amount of administration. If it admits those judgments freely, it may reproduce the flexibility it was designed to replace. This is the editors' critique, not a new judicial holding. [CB 92.]

Coglianese's dimensional account

Cary Coglianese argues that delegation cannot be measured solely by the precision of a verbal standard. Its extent matters too: which parties, activities, and policy domains may the agency regulate? Schechter's authorization approached a general power to regulate economic activity across industries. The Clean Air Act, despite economy-wide consequences, addressed air pollution. Broadcasting regulation likewise operated within a defined domain. On this account, later decisions sustaining broad language can coexist with Schechter's result. [CB 93-95.]

Panama Refining is a difficulty for that account because its oil-transportation authority was comparatively narrow. Coglianese acknowledges the mismatch and questions the decision, rather than pretending every precedent fits. For class, distinguish his positive claim about explaining case outcomes from the normative question of whether his framework is desirable. [CB 94-95.]

The historical dispute

The notes present contested scholarship on whether founding-era sources establish a nondelegation principle and, if so, how demanding it was. Evidence of some limit does not automatically establish a categorical prohibition on administrative rulemaking. The existing doctrine already has a limit; showing that an earlier generation also recognized one leaves its content unresolved. [CB 95-96.]

Early statutes permitted executive decisions about disabled soldiers' benefits, trade with Native nations, postal operations, embargoes, seamen's care, and real-estate tax valuations. Advocates of a stricter doctrine distinguish benefits, foreign affairs, or fact-finding; critics question whether contemporary sources recognized those exceptions and whether broad, contested tax valuations can sensibly count as mere facts. [CB 96-98.]

Comparing formulations

The important-subject/detail distinction may be flexible enough to accommodate competing historical evidence. Bamzai's excerpt suggests that this test and the intelligible-principle test can converge: each asks about the importance of the delegated issue and the boundaries imposed on discretion. A stricter label need not yield stricter outcomes unless the reviewing court also changes how it applies the test. [CB 98-99.]

Delegation, representation, and good government

CB 99-106

Legislative proposals and the major questions doctrine

The casebook describes the REINS proposal as conditioning major agency rules on a joint resolution enacted through bicameralism and presentment, subject to specified exceptions. Its point is institutional: Congress could reserve final approval over major rules by changing the governing law. Treat the text's account of the proposal's legislative history as a description from the casebook, not a separately verified September 2026 status report. [CB 99.]

The major questions doctrine, as described in the *West Virginia v. EPA* note, requires clear statutory authority for an agency to resolve a matter of great economic or political significance. Distinguish statutory authority from constitutional delegability. A clear congressional authorization can answer the major-questions objection but leaves any independent nondelegation objection to be analyzed. The note also distinguishes Gorsuch's nondelegation rationale from Barrett's different account of the doctrine. [CB 99.]

Lowi, Ely, and Rehnquist: responsibility for difficult choices

Lowi argues that vague delegations can leave policy permanently unsettled and subject to bargaining between administrators and affected groups, weakening coherent law and public confidence. Ely emphasizes representation: fundamental choices should be made by elected legislators if political participation is to control policy. Rehnquist's OSHA objections focus on Congress's failure to settle a difficult tradeoff between worker protection and economic cost. These arguments concern accountability and lawmaking quality, as well as constitutional text. [CB 100-101.]

The editors press the counterquestions. Is ambiguity necessarily unrepresentative when the electorate itself has conflicting commitments? Should a useful program be impossible until Congress settles every basic tradeoff? Even precise statutory criteria leave discretion over agendas, enforcement intensity, and timing. Legislative specificity therefore does not eliminate administrative policy choice. [CB 101-102.]

Mashaw: responsiveness through presidential elections

Mashaw argues that broad delegations can make administration responsive to changing national preferences expressed in presidential elections. Congress legislates with substantial transaction costs, and statutes can remain unchanged for long periods. Administrative discretion allows an elected administration to change direction within existing legal authority. A regime of tightly specified commands could make presidential elections less consequential unless the President also secured statutory amendments. This defense depends on how one evaluates national electoral accountability and presidential control. [CB 102-104.]

Spence and Cross: institutional capacity and displaced discretion

Spence and Cross emphasize information costs, technical expertise, adaptation, and Congress's competing demands. Specific legislation can itself embody special-interest favors. If Congress responds to a stricter doctrine by enacting vague laws without administrative implementation authority, discretion may migrate to courts, whose expertise, information gathering, democratic responsiveness, and agendas present their own problems. The relevant comparison is among actual institutions, not an ideal legislature and a flawed agency. [CB 104-106.]

The transition to executive supervision

Congressional influence at CB 106; executive organization at CB 135-146

Where the first assignment stops

CB 106 introduces legislative vetoes: statutory devices allowing one House, or sometimes both Houses, to block an agency action by resolution without presidential presentment. It begins the discussion of Chadha, which invalidated that arrangement. The full Chadha excerpt lies beyond the assigned first range. The point here is the attempted retention of congressional control after delegation, and the constitutional difference between ordinary legislation and a disapproval resolution lacking required lawmaking procedures. [CB 106.]

Why organization changes policy

The executive-supervision chapter treats control of administration as a recurring contest shaped by constitutional text, statutes, political bargaining, and institutional design. Presidents can use appointments, removal authority, directives, coordination, budget clearance, litigation control, and public advocacy. Congress can shape offices and their powers, appropriate or restrict funds, conduct oversight, and use the Senate's confirmation role. Whether a particular technique is constitutional remains a separate question from whether it is politically effective. [CB 135-137.]

Congress's office-creation role follows from the Appointments Clause's reference to offices established by law and the Necessary and Proper Clause. Congress can delegate organizational authority, but the President's modern managerial position should not simply be assumed to reproduce the founding arrangement. Early statutes expressly subordinated foreign and military departments to presidential direction while treating some domestic departments differently. The casebook presents these differences as evidence of historical contestation. [CB 138-140.]

Growth of presidential administration

The Brownlow Report promoted presidential coordination and criticized independent commissions as fragmenting responsibility. Reorganization authority subsequently let presidents redistribute functions subject to legislative veto mechanisms. Organizational changes could alter substantive priorities even when the underlying legal mandate stayed constant; the transfer of pesticide functions to EPA illustrates that possibility. [CB 140-141.]

After Chadha, Congress's 1984 framework required implementing legislation through a fast-track process. Reorganization no longer offered the same shortcut around ordinary lawmaking. Later administrations also pursued managerial and regulatory-control techniques that could matter more than rearranging boxes on an organizational chart. [CB 142.]

Consolidation's tradeoffs

The homeland-security example contrasts informal presidential coordination with a department created by Congress and supplied with statutory authority. Consolidating agencies can improve coordination but also disrupt work, subordinate nonsecurity missions, and leave important agencies outside the new structure. The Obama and first Trump reorganization discussions likewise reveal committee interests, statutory constraints, and competing missions. The casebook's agency inventories and descriptions of administrations are historical context from the text. [CB 142-145.]

Appointments Clause: the analytical sequence

Framework at CB 145-147 and 153-155

Presidential advisers and administrative power

The Executive Office of the President consists of multiple offices with different legal origins and responsibilities. The label czar is imprecise: it can refer to an informal adviser, a Senate-confirmed statutory officer, or a subordinate departmental official with a coordinating portfolio. Determine the actual authority of the position rather than drawing a constitutional conclusion from the title. [CB 144-146.]

The casebook identifies three recurring concerns about special White House advisers: they can obscure who made a decision; they can appear to bypass Senate participation; and they may lack the budgetary power to coordinate effectively. The defense stresses the President's need for confidential advice and a central means of coordinating priorities across agencies. Informal influence and the legal authority to administer a statute are different facts in the appointments analysis. [CB 145-146.]

First question: is this an officer?

Ask whether the person holds a continuing, legally established position and exercises significant authority under federal law. Look at powers to conduct adjudication, bind parties, exercise enforcement discretion, make rules, and perform substantial governmental responsibilities. Freytag's factors include statutory duties and appointment arrangements, testimony-taking, trial management, evidence rulings, discovery authority, and discretion. An employee remains outside the constitutional appointment categories, but merely naming someone an employee is not decisive. [CB 150, 153-154.]

Second question: principal or inferior?

Morrison examines limited duties, jurisdiction, tenure, and removability by a superior. Edmond emphasizes direction and supervision by properly appointed superior officers. Arthrex asks whether the challenged adjudicative arrangement permits principal-officer control of the government's final decision. Neither an impressive title nor location far down an organizational chart answers the question by itself. [CB 159-164, 170-173.]

Third question: was the right appointment route used?

For a principal officer, require presidential appointment with Senate consent. For an inferior officer, that default is valid, and Congress may by law authorize appointment by the President alone, a court of law, or a department head. Inferior status does not automatically authorize any supervisor to appoint: identify the statutory vesting and the constitutional category of the appointing actor. [CB 147.]

Fourth question: what follows from a defect?

Identify the specific mismatch between duties, supervision, and appointment. Then distinguish a possible institutional repair from the relief due the challenging litigant. Arthrex preserves APJ appointments and initial adjudication while enabling Director review; it does not require a new APJ panel or invalidate the entire patent-review system. [CB 164-167.]

Buckley v. Valeo

424 U.S. 1 (1976) | Assigned appointments excerpt: CB 147-152

Facts and institutional design

The 1974 campaign-finance amendments established an eight-member Federal Election Commission. Two nonvoting members served ex officio. Of six voting members, two were selected by the President, two by the President pro tempore of the Senate, and two by the Speaker of the House. All six required confirmation by both Houses. Party-balance constraints limited the selections. [CB 149.]

The Commission did much more than gather election information. It could promulgate regulations, issue advisory opinions with legal consequences, determine eligibility for public funds and elective office, and initiate civil litigation. Those powers placed it directly in the administration and enforcement of federal law. [CB 148-149.]

Posture and issue

The case reached the Court as a broad constitutional challenge to federal campaign-finance law. The assigned portion addresses whether the Commission could exercise its statutory functions given its appointment structure. The Court of Appeals had accepted an argument based on Congress's institutional appointment authority. The Supreme Court's per curiam opinion rejects that argument as a justification for the Commission's substantial administrative and enforcement powers. [CB 147, 151.]

Holding and governing rule

A person exercising significant authority pursuant to federal law is an officer of the United States whose appointment must comply with Article II. Congress's leaders are not among the specified appointing authorities for these officers. Even the President's two selections were subject to an impermissible additional House-confirmation requirement. Consequently, the present Commissioners could not exercise the challenged officer-level administrative and enforcement functions. [CB 150-152.]

Reasoning

The Appointments Clause operates within a Constitution that distributes legislative, executive, and judicial powers and constrains overlap between congressional membership and federal officeholding. Congress's general authority to create offices cannot override the particular constitutional rule for filling them. The Necessary and Proper Clause enables organizational legislation subject to the Constitution's express limits. [CB 149-152.]

The Court distinguishes authority Congress itself may exercise from execution of public law. Information receipt, dissemination, and investigation comparable to committee functions can be assigned through Congress's institutional arrangements. Bringing civil actions to enforce public rights goes further: it implements the law, implicating the President's duty of faithful execution. Rulemaking, advisory opinions, and eligibility decisions likewise carry substantial legal consequences beyond assisting legislation. [CB 151-152.]

Scope and consequence

The opinion does not deny Congress the ability to choose its own staff or officers for appropriate legislative functions. It invalidates the assignment of executive-law administration to persons selected outside the constitutional appointments process. Nor does the appointments holding alone establish that every validly appointed officer must be removable by the President at will. Appointment and removal are separate inquiries. [CB 151-152.]

Buckley note cases: who counts as an officer?

CB 152-154

FEC v. NRA Political Victory Fund

The casebook describes Congress's post-Buckley effort to retain two congressionally appointed nonvoting FEC members. The D.C. Circuit held that this arrangement still intruded congressional influence into administration. The Supreme Court later dismissed certiorari for lack of jurisdiction. The lesson of the note is that removing a formal vote does not necessarily eliminate the structural problem; the appellate holding should not be mislabeled a Supreme Court merits ruling. 6 F.3d 821 (D.C. Cir. 1993). [CB 152-153.]

Freytag v. Commissioner, 501 U.S. 868 (1991)

The issue was whether Tax Court special trial judges were officers and, if so, whether the Chief Judge could appoint them. Their offices and important attributes were set by statute. They took testimony, conducted trials, resolved evidentiary questions, enforced discovery requirements, and exercised significant discretion. Some assignments also permitted them to render the Tax Court's decision. The Court unanimously regarded them as inferior officers rather than employees. [CB 153-154.]

The Justices divided 5-4 over the constitutional source of appointment authority. The majority treated the Tax Court as a court of law and rejected the view that this category is limited to Article III courts. The separate concurrence viewed the relevant authority as appointment by a head of department, understood to include heads of agencies immediately below the President. Thus the case involves both classification of the appointee and classification of the appointing institution. [CB 154.]

Do not infer from the list of duties that the Court decided each duty independently suffices for officer status. The note expressly identifies that uncertainty. Nor should the authority to decide some cases be converted into a universal requirement that an adjudicator issue an unreviewable final decision to count as an officer. [CB 153.]

Lucia v. SEC, 138 S. Ct. 2044 (2018)

The casebook reports that SEC administrative law judges qualify as officers under Freytag's analysis, without announcing a comprehensive new definition of significant authority. Its central use here is to show that important administrative adjudicators cannot be treated as ordinary employees for appointments purposes. The officer-status holding does not itself establish that all such adjudicators are principal officers. [CB 153-154.]

Mascott and Thomas: a broader proposed category

The notes discuss an originalist account encompassing officials responsible for an ongoing statutory duty, potentially including historically ministerial customs positions. This is broader than a test centered on significant discretion. The discussion also acknowledges counterevidence: certain deputies were not treated as constitutional officers despite consequential duties, possibly because they acted as agents for officials personally responsible for their conduct. Treat this as a contested account of original meaning, not the majority rule adopted in Lucia. [CB 153-154.]

Added duties and lawful appointment

Shoemaker and Weiss | CB 154-155

Shoemaker v. United States, 147 U.S. 282 (1893)

Congress created a commission to oversee development of Rock Creek Park. Three members were to receive presidential appointment with Senate confirmation. Two seats were assigned to existing military officers: the Army Chief of Engineers and the District of Columbia Engineer Commissioner. The challenge asked whether assigning those duties effectively let Congress appoint officers, requiring a fresh constitutional appointment instead. [CB 154-155.]

The Court held that another appointment was unnecessary. The incumbents already held offices through presidential appointment and Senate confirmation, and their additional park-development duties were germane to those offices. Congress can enlarge an existing office's responsibilities without requiring the incumbent to repeat the appointment process whenever its duties change. Here, the new functions were sufficiently related to the officers' established sphere of work. [CB 155.]

Weiss v. United States, 510 U.S. 163 (1994)

Military trial and appellate judges were commissioned military officers selected and certified as qualified by their service's Judge Advocate General. The challenge asserted that the judicial assignments required another appointment. The Court rejected that argument, emphasizing both the military officers' existing appointments and the relationship between the assigned duties and military service. [CB 155.]

The Court found no basis to suspect that Congress had created an office while simultaneously selecting a particular individual to fill it. Military officers traditionally participate in the military justice system, and the judicial work was sufficiently germane to their responsibilities. The assignment resembled other special duties within military service. This note concerns appointments; it is not a general holding that civilian judicial duties can always be assigned to any existing official. [CB 155.]

Relationship to Buckley

Congress possesses authority to define and revise an office. It cannot use that authority as a disguised appointment power. Germaneness mediates the distinction: expanding related responsibilities is different from selecting a known incumbent for an effectively distinct, unrelated office. The cases demonstrate a permissible practice, while leaving the precise boundary open in harder examples. [CB 154-155.]

Practice application: an existing engineering officer

Suppose Congress assigns a Senate-confirmed engineering officer oversight of another federal construction project. Shoemaker supplies a strong analogy because the additional work is related to the existing professional and official role. If Congress instead assigns that officer the permanent leadership of an unrelated national financial regulator, the connection is much weaker. A complete analysis should identify the statutory duties of the original office, the new powers, whether the arrangement targets a particular person, and whether it functions as creation and filling of a distinct office. This hypothetical analysis extends the assigned cases; it is not an additional holding.

United States v. Arthrex, Inc.

594 U.S. 1 (2021) | Facts, posture, and holding: CB 156-164

Facts and administrative structure

Arthrex held a patent on a surgical device for attaching soft tissue to bone without a knot. After an infringement dispute with Smith & Nephew and ArthroCare, a panel of three administrative patent judges, or APJs, conducted inter partes review and found the challenged patent claims invalid based on an earlier patent application. [CB 156-157.]

APJs served on the Patent Trial and Appeal Board within the Patent and Trademark Office. The Secretary of Commerce appointed them. The PTO Director, appointed by the President with Senate confirmation, controlled policy, institution of review, panel selection, procedural rules, and other administrative matters. But the statutory scheme allowed only the Board to grant rehearing and did not permit the Director alone to review and reverse a final APJ decision. Federal Circuit judicial review remained available. APJs also had statutory removal protection. [CB 156-161.]

Procedural history

Arthrex first raised its Appointments Clause challenge in the Federal Circuit. That court held the APJs were principal officers because their decisions were not subject to review by the Secretary or Director and they were not removable at will. It attempted to cure the defect by invalidating tenure protection, vacated the decision, and ordered a new hearing before a different panel. All sides sought further review of aspects of that result. [CB 157-158.]

Question presented

Could APJs appointed through the inferior-officer route exercise the challenged power to render a final decision binding the Executive Branch without principal-officer review? Officer status itself was undisputed; the question was whether their responsibilities matched their method of appointment. [CB 159.]

Holding

The unreviewable authority exercised by APJs in inter partes review was incompatible with their appointment by the Secretary to an inferior office. In the proceeding before the Court, only a properly appointed principal officer could issue the final decision binding the Executive Branch without such superior review. The Court expressly declined to establish an exclusive principal/inferior test for all contexts. [CB 164.]

The relevant precedent: Edmond

Edmond sustained the appointment of Coast Guard appellate military judges who were supervised through a combination of administrative oversight and review by another executive tribunal. Their decisions could become final only as permitted by other executive officers. Arthrex found the comparable executive review missing: the PTO Director was the APJs' supervisor in many respects, but not in the adjudicative act constituting their central exercise of significant authority. [CB 159-160.]

Arthrex: why indirect control was insufficient

Majority reasoning | CB 158-164

A visible chain of responsibility

Roberts connects the appointments structure to public accountability. Presidential nomination and Senate confirmation identify responsibility for principal officers. Inferior officers can be appointed through a simpler route because they remain subject to direction and supervision within that chain. Insulation of the APJs' final decisions prevented the Director from controlling those decisions or being held meaningfully responsible for them. [CB 158-160.]

The Director's issuance of a certificate canceling or confirming patent claims did not supply substantive control. Once the Board resolved the case, that act was mandatory. A formally final signature is different from authority to determine the outcome. [CB 160.]

Panel selection and manipulation

The government emphasized the Director's ability to decide whether to institute review, select panel members, designate precedent, and potentially arrange a different rehearing panel. The majority regarded these mechanisms as inadequate substitutes for direct review. Influencing an outcome through panel composition while lacking formal authority to own the decision obscures responsibility. It also risks sacrificing both expert independence and transparent political accountability. [CB 160-161.]

Prospective personnel control

Reassigning an APJ in the future would not undo a final decision already issued. Removal from federal service also remained subject to the statutory efficiency-of-the-service standard. The Court therefore found that these controls did not resolve the challenged finality problem. In discussing remedies, however, it did not definitively decide whether eliminating removal protection would independently cure the defect. Keep that qualification separate from its criticism of the existing arrangement. [CB 161, 166.]

Why Article III review did not cure the problem

A federal court can test a decision's legality, but it does not become a principal executive officer responsible to the President for administration. APJs' adjudication of public rights remained an exercise of executive power in this setting. Judicial review therefore could not supply the missing supervision within the Executive Branch. [CB 162.]

Historical comparisons and limits

The majority distinguished other adjudicative schemes based on available executive review, removal arrangements, temporary duties, or the absence of a settled historical analogue. It emphasized principal-officer control in the patent system's history while acknowledging variations. Ad hoc arbitrators or temporary officials did not establish the validity of permanent APJs with the challenged combination of authority and protection. [CB 162-164.]

Precise formulation for class

Under this arrangement, officials appointed as inferior officers could not conclusively bind the Executive Branch in inter partes adjudication while insulated from principal-officer review and protected from removal. The opinion does not announce that every subordinate decision must actually be reviewed, or that every government adjudicator requires Senate confirmation. Its constitutional analysis concerns the availability of legally adequate supervision in the particular structure. [CB 164, 167.]

Arthrex: remedy and competing opinions

CB 164-170

The Court's repair and disposition

The Court made 35 U.S.C. Section 6(c) unenforceable to the extent it prevented the Director from reviewing APJ decisions. The Director could review final PTAB decisions and issue a decision on the Board's behalf. Review need not occur in every case; the Director must have discretion to undertake it. The remaining inter partes review framework continued to operate. [CB 165-167.]

For Arthrex, the Court ordered a limited remand so the Acting Director could decide whether to rehear the petition. It rejected an entitlement to a fresh hearing before new APJs because the Secretary's appointment allowed them to adjudicate initially; the defect concerned the restriction on superior review of their final decision. The Supreme Court vacated the Federal Circuit's judgment and remanded. [CB 166-167.]

The Court preferred this solution to the Federal Circuit's removal of tenure protection because Director review better matched the agency's supervisory structure and the nature of the problem. It also rejected invalidating the entire inter partes review system. The remedial principle was to resolve the constitutional conflict while leaving the rest of the statute operative. [CB 164-166.]

Gorsuch: agreement on violation, disagreement on repair

Gorsuch agreed that the APJs' unreviewable executive power violated the constitutional chain of responsibility. He would set aside the PTAB decision in the case before the Court rather than reshape the statute through the chosen severability remedy. The disagreement is therefore not whether a violation occurred, but how far a court may go in preserving the program by changing the operation of its provisions. [CB 167.]

Breyer: functional analysis and remedial agreement

Breyer, joined by Sotomayor and Kagan, rejected the constitutional ruling but accepted its premise for selecting relief. He emphasized Congress's discretion to design inferior offices, existing supervision by two confirmed officers, patent expertise, and the value of insulating technical adjudication from political interference. Given the majority's contrary constitutional decision, he agreed that Director review was a remedy tailored to that violation. [CB 167-169.]

Thomas: rank and actual supervision

Thomas, joined in the excerpted Parts I and II by Breyer, Sotomayor, and Kagan, emphasized APJs' inferior rank and their substantial supervision by the Secretary and Director. He read Edmond as requiring genuine supervision at some level, not a rigid requirement that a superior personally review every category of decision. The Constitution does not create separate textual categories of principal-officer power and inferior-officer power. [CB 169-170.]

Voting precision

Roberts, Alito, Gorsuch, Kavanaugh, and Barrett supplied five votes for the constitutional violation. Roberts's Part III was joined by Alito, Kavanaugh, and Barrett; Breyer, Sotomayor, and Kagan separately agreed with the remedial holding. Thus seven Justices supported the remedy, although only four joined Roberts's remedial opinion. [CB 167-170; official opinion, syllabus.]

Morrison and Edmond: inferior officers

Note cases | CB 170-173

Morrison v. Olson, 487 U.S. 654 (1988)

A special division of the D.C. Circuit appointed an independent counsel under the Ethics in Government Act after an application by the Attorney General. The office was designed to investigate and, where appropriate, prosecute serious offenses involving specified high-level officials. The Appointments Clause question was whether the counsel was inferior, making judicial appointment constitutionally available. The Court held that she was. [CB 170-171.]

The majority emphasized four features. The Attorney General could remove the counsel under the Act's restrictions. The office performed limited investigative and prosecutorial duties, without general authority to formulate executive policy. Its jurisdiction was confined to the task specified through the statutory process. Its tenure was temporary in the sense that completing the assignment ended the office, even without a fixed expiration date. Substantial discretion did not by itself make the counsel principal. [CB 171.]

Scalia dissented. He regarded genuine subordination in exercising discretionary authority as necessary to inferior status and considered the majority's limitations insufficient. The difference concerns the kind of dependence that matters: a collection of constraints on an office versus an actual supervisory relationship over its work. The case was 7-1, with Kennedy recused. This assignment uses its appointments analysis; its fuller removal discussion appears later in the casebook. [CB 170-172.]

Edmond v. United States, 520 U.S. 651 (1997)

Civilian members of the Coast Guard Court of Criminal Appeals were appointed by the Secretary of Transportation. Their offices were not limited in duration and jurisdiction like the independent counsel's. Nevertheless, the Court unanimously upheld their appointments as inferior officers because their work was directed and supervised through other executive officers. [CB 172-173.]

The Judge Advocate General prescribed procedural rules, participated in policy formulation, and could remove a judge from the judicial assignment without cause. That official could not dictate an individual case's result or reverse a decision. Review lay instead with the Court of Appeals for the Armed Forces, another Executive Branch entity. Its limited factual review did not make the lower judges principal officers; they lacked unilateral authority to render the final executive decision. [CB 172-173.]

Relationship between the cases

Edmond shifts the emphasis toward supervision rather than treating Morrison's factors as a checklist that every inferior office must satisfy. The notes caution that the outcomes might still be reconcilable: Edmond's judges had broader, continuing responsibilities but greater supervision. Arthrex relies strongly on Edmond while repeating its refusal to supply an exclusive universal criterion. Do not describe the assigned materials as holding that Edmond or Arthrex expressly overruled Morrison. [CB 173.]

Interbranch appointment and synthesis

CB 173-174; connections across the assignment

May a court appoint an executive officer?

Morrison rejects a categorical rule against interbranch appointments of inferior officers. The constitutional text authorizes Congress to vest appointments in courts of law and contains no requirement that the appointee perform judicial duties. The phrase allowing Congress to choose as it thinks proper supports meaningful legislative discretion. [CB 173.]

That discretion remains bounded. An arrangement can be impermissible if it impairs a branch's constitutional functions or creates an incongruity between a court's ordinary responsibilities and the appointment task. In Morrison, the court's appointment of a prosecutor was sufficiently related to judicial experience, responded to executive conflicts of interest, and came with a safeguard disqualifying the appointing judges from participating in matters involving their appointee. The Court therefore upheld this interbranch appointment. [CB 174.]

What the appointment did not establish

Permissible selection of an officer does not confer general judicial authority to direct that officer's work. Likewise, labeling a function executive does not resolve every appointments question. The casebook notes a historical argument associating prosecutors with quasi-judicial functions, but explains that the Supreme Court did not rely on that line of reasoning. Separate the Court's rationale from the alternative offered by Judge Ginsburg and later scholarship. [CB 174.]

Congress's different constitutional roles

Congress can define the scope of an administrative program, create offices, prescribe their duties, and select a constitutionally permitted appointment route for inferior officers. Each power has its own limits. Whitman asks whether the statute supplies sufficient policy guidance. Buckley bars Congress from filling officer positions through unauthorized actors. Shoemaker permits germane additions to an existing office. Morrison permits some judicial appointments. Arthrex limits insulation of the relevant final executive adjudication. One valid institutional choice does not immunize the others.

Expertise, independence, and accountability

The policy debate in the first assignment helps explain the constitutional conflict in the second. Mashaw's electoral account gives administrative discretion democratic significance through presidential leadership. Arthrex's majority demands a concrete supervisory mechanism that lets that leadership bear responsibility. Breyer's response stresses that Congress may deliberately structure technical decisions to resist political interference. Lowi and Ely raise the prior question whether Congress has made enough of the substantive choice in the first place. These are connected but distinct challenges to institutional design. [CB 100-105, 158-170.]

A useful argument structure

For any proposed agency arrangement, identify the substantive mandate, the decisionmaker's powers, the source of the appointment, and the available supervision. Apply each relevant constitutional rule separately. Then explain the competing institutional values and address a remedy targeted to the defect actually found. That structure prevents an answer about presidential accountability from skipping the statutory or appointments questions that determine the case.

Practice questions and model analysis

Original hypotheticals based on the assigned readings

A broad statute and a careful agency

Congress authorizes a commission to regulate every commercial activity whenever it considers regulation beneficial. The commission adopts a narrow internal rule limiting itself to food-label disclosures. Does that rule answer a nondelegation challenge? Under *Whitman*, voluntary agency restraint cannot supply a congressional limit missing from the statute. Analyze the breadth of the authorization, its criteria, and its context. *Coglianesi*'s dimensional account makes its cross-economy reach relevant. A later statute adopting the narrower boundary would present a different question.

An ambiguous transition provision

Congress orders a comprehensive national licensing system but gives an agency authority to specify its applicability to existing license holders. The agency says it can permanently exempt anyone. Begin with statutory meaning: does the structure establish universal coverage and leave only transitional feasibility to the agency, as *Kagan* reasoned in *Gundy*? Or has Congress left the coverage decision itself open, as *Gorsuch* understood *SORNA*? Agency preference cannot settle either question. Explain both readings before applying the delegation standard.

A commissioner appointed by congressional leaders

Congress creates a regulator with enforcement power and allows the Speaker to select a nonvoting member who participates in deliberations. *Buckley* bars congressional appointment of officers exercising significant federal authority; the *NRA Political Victory Fund* note warns that nonvoting status alone does not remove the intrusion. Determine the member's actual role and influence, rather than treating the absence of a vote as conclusive.

An adjudicator whose decisions are recommendations

A continuing statutory adjudicator conducts hearings, rules on evidence, and prepares proposed decisions, which a department head can review. Officer status and inferiority must be analyzed separately. Significant adjudicative discretion supports officer status under *Freytag* and *Lucia* even though superior review remains available. That review, together with the full supervisory structure, supports inferior status under *Edmond* and *Arthrex*. Finally, verify that Congress vested appointment in a constitutionally permitted actor.

An unreviewable decision with an Article III appeal

A secretary appoints adjudicators protected against removal who conclusively determine an executive program's disputes, subject only to federal-court review. *Arthrex* presents a strong objection to the absence of principal-officer review in that arrangement. The availability of an Article III appeal provides legality review, not the executive supervision the majority required. Consider statutory differences and the opinion's contextual limitation before treating the analogy as automatic.

A court appoints an independent prosecutor

Judicial appointment is possible if the prosecutor is inferior and Congress validly vested the power in a court of law. *Morrison* requires attention to the office's constraints, while *Edmond* and *Arthrex* direct attention to actual supervision. Then examine impairment of judicial functions, incongruity, conflicts, and participation by the appointing judges. Appointment by a court is neither categorically forbidden nor automatically valid.

Reading map and source references

Exact coverage and retrieval notes

September 23: printed pages 76-106

CB 76-80: Whitman, including the Stevens-Souter concurrence. CB 80-91: Gundy, including the Kagan plurality, Alito concurrence, and Gorsuch dissent. CB 92-95: facts/details and Coglianese's dimensional account. CB 95-99: founding-era history, competing originalist accounts, and comparison of doctrinal formulations. CB 99: REINS and the major questions doctrine. CB 100-106: delegation, representation, and institutional competence. CB 106: opening of the legislative-veto section.

September 28: printed pages 135-174

CB 135-146: executive supervision, organizational history, reorganization, the EOP, and presidential advisers. CB 147: appointment methods. CB 147-152: Buckley. CB 152-154: NRA Political Victory Fund, Freytag, Lucia, and the officer/employee debate. CB 154-155: Shoemaker and Weiss. CB 156-170: Arthrex and its separate opinions. CB 170-173: Morrison and Edmond on inferior officers. CB 173-174: interbranch appointments.

Scan navigation

In the retrieved scan, printed page 76 appears at PDF viewer pages 33 and 34. Printed pages 77-106 occupy viewer pages 35-64. Printed pages 135-174 occupy viewer pages 65-104. The scan therefore cannot be navigated using one constant offset for both assignments. The discussion above follows printed page numbers throughout.

Primary reading

September casebook scan, identified in DKLA's added-sources folder at repository snapshot 6a6dd5f775269761f4f17bbc60456aaadca0a31f. Retrieved copy: lrs-september(1).pdf, 42,496,179 bytes. The text is a scanned casebook with OCR imperfections; the appointment-threshold error on CB 135 was checked against the page image. Chapter and page identifiers are used because the retrieved excerpt does not provide a verified title-page edition statement.

[DKLA source PDF](#)

Supplemental primary-source checks

The constitutional text was used to correct the Senate-consent statement on CB 135. The official Arthrex opinion was used to verify the distinction between the merits coalition and support for the remedy. Case discussions otherwise track the assigned casebook passages rather than substituting unassigned full opinions.

[U.S. Constitution, Article II, Section 2](#)

[United States v. Arthrex - official Supreme Court opinion](#)

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